

25VECV06434 25VECV06434

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-12

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Case Number: 25VECV06434 Hearing Date: August 12, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

VERANIA AGUILAR, an individual,

Plaintiff,

vs.

IN-N-OUT BURGERS; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV06434

[TENTATIVE] RULING RE: DEFENDANT’S MOTIONS TO COMPEL PLAINTIFF’S RESPONSES TO INITIAL DISCOVERY

Dept. U

8:30 a.m.

August 12, 2026

BACKGROUND

This case is a slip and fall action filed by Plaintiff Verania Aguilar against Defendant In-N-Out Burgers.

On November 10, 2025, Plaintiff filed her complaint against Defendant.

On December 31, 2025, Defendant filed its answer to the complaint.

On February 13, 2026, Defendant served Plaintiff with requests for production of documents (the “RFPs”), form interrogatories (the “FROGs”), and special interrogatories (the “SROGs”). Despite Defendant’s subsequent efforts to meet and confer, Plaintiff failed to timely respond to the RFPs, the FROGs, and the SROGs. (Cenac decl., ¶¶ 3-5.)

On May 13, 2026, Defendant filed its motions to compel Plaintiff’s initial responses to the RFPs, the FROGs, and the SROGs.

On July 29, 2026, and on August 5, 2026, Defendant filed its notices of Plaintiff’s non-opposition to the motions.

As of 9:00 A.M. on August 7, 2026, Plaintiff had filed no opposition brief.

RULING

The motions are granted. Defendant is awarded sanctions against Plaintiff in the total amount of \$1,980.00.

LEGAL STANDARD

Motion to Compel Initial Responses to Requests for Production of Documents

Where there has been no response to a demand to produce documents, the demanding party may seek an order compelling a response. *Cal. Code Civ. Proc.*, § 2031.300.

Motion to Compel Initial Responses to Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the demanding party may move for an order compelling a response. *Cal. Code Civ. Proc.*, § 2030.290.

DISCUSSION

Defendant moves to compel Plaintiff's initial responses to the RFPs, the FROGs, and the SROGs.

On February 13, 2026, Defendant served the RFPs, the FROGs, and the SROGs on Plaintiff. Despite Defendant's efforts to meet and confer, Plaintiff failed to timely respond to the RFPs, the FROGs, and the SROGs. Defendant is entitled to an order compelling Plaintiff to respond to the RFPs, the FROGs, and the SROGs, without stating objections, within thirty (30) days. See *Cal. Code Civ. Proc.*, §§ 2030.290, 2031.300.

The trial court shall impose a monetary sanction when granting a motion to compel initial responses to a request for production of documents or interrogatories, unless the court finds circumstances would make the imposition a sanction unjust. *Cal. Code Civ. Proc.*, §§ 2030.290 (c), 2031.300 (c).

Defendant has been waiting on Plaintiff's responses to basic discovery for several months. Despite Defendant's efforts to meet and confer, Plaintiff failed to provide initial responses. Defendant is entitled to recover its attorneys' fees.

The Court calculates reasonable attorneys' fees under the lodestar. *See* *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096.

As to each motion, Defendant requests \$2,910.00, representing 9.5 hours of attorney time at \$300.00/hour, plus the motion's \$60.00 filing fee. Defendant's request is reasonable as to counsel's \$300.00/hour rate but inflated as to the number of hours billed. 5.0 hours is a reasonable total amount of time for counsel to have spent preparing all three (3) motions, which are largely duplicative. Plaintiff filed no opposition brief(s), and Defendant filed no reply. The lodestar will be adjusted accordingly. Defendant may recover 1.0 additional hour of attorney time for counsel to appear at the hearing on all three (3) motions. *Cal. Code Civ. Proc.*, § 2031.300. Defendant may also recover each motion's \$60.00 filing fee.

In sum, Defendant will be awarded its attorneys' fees against Plaintiff in the total amount of \$1,980.00. *Cal. Code Civ. Proc.*, § 2031.300. (6.0 hours x \$300.00/hour + \$60.00 filing fee x 3 = \$1,980.00.)

The Court notes that Defendant has separately filed a motion to deem Plaintiff's responses to requests for admission admitted. Plaintiff is strongly encouraged to work with Defendant to informally resolve outstanding discovery issues before the hearing on that motion on October 20, 2026.

CONCLUSION

Plaintiff Verania Aguilar is ORDERED to provide initial responses to Defendant In-N-Out Burgers's Requests for Production of Documents, Form Interrogatories, and Special Interrogatories, without stating objections, within thirty (30) days of this order.

Defendant In-N-Out Burgers is AWARDED sanctions against Plaintiff Verania Aguilar 9in the total amount of \$1,980.00.

Defendant In-N-Out Burgers is ORDERED to give notice.

DATED: August 12, 2026

Lee S. Arian

Judge of the Superior Court